



HOME PURCHASE AGREEMENT

In consideration of the reciprocal covenants stated herein, **D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes,** (“Seller”) and **Godwill Atem Atem** (collectively, “Purchaser”) agree as follows:

1. CONVEYANCE. Seller shall sell to Purchaser and Purchaser shall purchase from Seller all that certain parcel or tract of land with a street address of **8255 BLUEWATER DRIVE, FAIRBURN, GA 30213**, more particularly described as Lot **0112**, Block , **Oaks at Cedar Grove** Subdivision (the “Lot”), together with all improvements thereon and all appurtenances thereto. The interests to be conveyed pursuant to this Home Purchase Agreement (the “Agreement”) are hereinafter collectively referred to as the “Property”.

2. PURCHASE PRICE AND METHOD OF PAYMENT. Subject to adjustment as may be provided herein, the Purchase Price for the Property shall be: **Three Hundred Forty Six Thousand Nine Hundred Ninety and 00/100 Dollars (\$346,990.00)** to be paid in cash as provided herein. The terms of the subsection (a or b) checked below shall also apply. Purchaser acknowledges that any incentives to be applied to the Purchase Price at Closing are subject to the terms and conditions (including, without limitation, closing deadlines) set forth in Seller’s marketing materials pertaining to such incentives.

☐ **a. No Financing Contingency.**

Purchaser shall pay to Seller the Purchase Price in cash at Closing (as defined in Section 16 below). Within three (3) business days of the Effective Date, Purchaser shall provide documentation to Seller that will verify to Seller’s reasonable satisfaction that Purchaser has the available funds necessary to purchase the Property according to the terms of this Agreement. If Purchaser does not provide such documentation to Seller within that time period, then Seller may at its option terminate this Agreement by providing written notice to Purchaser of termination, in which event Seller shall retain the Earnest Money (as defined in Section 4 below) and neither party shall have any further obligation or liability to the other hereunder.

☒ **b. Financing Contingency**

(1) Purchaser shall use its best efforts to obtain a loan in the principal amount of no more than **96.5%** of the Purchase Price, reduced to the next lowest hundred dollars, (the “Loan”) to be secured by a first priority mortgage on the Property. The proceeds of the Loan, together with the balance of the Purchase Price, shall be paid to Seller by Purchaser in cash or other immediately available funds at Closing.

(2) Purchaser shall apply for the Loan within three (3) business days after the Effective Date. **Failure by Purchaser to apply for the Loan within that time-period or to pursue approval of the Loan diligently thereafter shall constitute a material breach of this Agreement by Purchaser.** Within seven (7) days after the Effective Date, Purchaser shall provide Seller with written evidence from Purchaser’s lender confirming that Purchaser has been prequalified for the Loan (the “Prequalification Letter”). Within twenty-one (21) days of the Effective Date, Purchaser shall provide Seller with a letter from Purchaser’s lender confirming that the Loan has been conditionally approved (the “Conditional Approval Letter”). Within thirty (30) days after the Effective Date, Purchaser shall provide Seller with a letter from Purchaser’s lender confirming that the Loan has been fully and finally approved, with no conditions or contingencies (the “Loan Commitment Letter”). If Purchaser fails to provide the Prequalification Letter, Conditional Approval Letter or Loan Commitment Letter to Seller by the respective deadlines stated above, then Seller may terminate this Agreement upon written notice to Purchaser, in which event the Earnest Money shall be refunded to Purchaser if Purchaser is not in breach of this Agreement, and thereafter neither party shall have any further liability or obligation to the other hereunder.

(3) Purchaser acknowledges that there are many different loan programs available from many different lenders. If the loan approval obtained by Purchaser contains any contingencies, Seller may require the satisfaction of those contingencies within the time period specified for obtaining the Loan Commitment Letter and terminate this Agreement if those contingencies are not waived or satisfied within that time; in which event, the Earnest Money shall be refunded to Purchaser, and neither party shall thereafter have any further liability or obligation to the other hereunder.

(4) Purchaser understands and acknowledges that certain loan/credit approvals are only valid for up to one hundred twenty (120) days. Purchaser shall update loan/credit approval documentation as needed in order to maintain current loan approval up until the date of closing. Purchaser agrees to execute all papers and perform all other actions necessary to obtain the Loan and to accept the Loan if approved by lender. Purchaser shall, in addition to the payment of principal and interest upon the Loan, pay at Closing such amounts as may be required by the lender to establish or maintain an escrow for insurance, property taxes or private mortgage insurance.

(5) FOR FHA/VA LOANS ONLY:

(i) **FHA Amendatory Clause.** If Purchaser applies for and obtains a commitment for an FHA-insured loan, then, notwithstanding any other provisions of this Agreement, Purchaser shall not be obligated to complete the purchase of the Property or to incur any penalty, by forfeiture of earnest money or any other deposit, or otherwise, unless Purchaser has been given, in accordance with HUD/FHA requirements, a written statement by the Federal Housing Commissioner or a Direct Endorsement lender setting forth the appraised value of the Property of not less than \$346,990.00. Purchaser shall have the privilege and option of proceeding with consummation of the Agreement without regard to the amount of the appraised valuation. The appraised valuation is arrived at to determine the maximum mortgage the Department of Housing and Urban Development will insure. HUD does not warrant the value or condition of the Property. Purchaser should satisfy himself/herself that the price and condition of the Property are acceptable.

(ii) **Escape Clause for VA Loans:** It is expressly agreed that, if Purchaser applies for and obtains a commitment for an VA-guaranteed mortgage loan, then, notwithstanding any other provisions of the Agreement, Purchaser shall not incur any penalty, by forfeiture of earnest money or any other deposit, or otherwise, nor shall Purchaser be obligated to complete the purchase of the Property if the Purchase Price or cost exceeds the reasonable value of the Property established by the Department of Veterans

Affairs. Purchaser shall, however, have the privilege and option of proceeding with the consummation of the Agreement without regard to the amount of the reasonable value established by the Department of Veterans Affairs (Authority: 38 U.S.C. 501, 3703(c)(1)).

(iii) **Additional Funding:** Purchaser agrees that, should Purchaser elect to complete the purchase of the Property at an amount in excess of the appraised value, Purchaser shall pay such excess amount in cash from a source Purchaser agrees to disclose to the FHA or VA (as applicable) and that Purchaser represents will not be from borrowed funds, except as approved by the FHA or VA (as applicable).

3. RESERVED.

4. DEPOSITS.

a. **Earnest Money.** Purchaser has paid to Seller an Initial Deposit as shown below. Purchaser shall pay to Seller Additional Deposits in the amounts shown below by the due dates shown below. Failure by Purchaser to pay an Additional Deposit by the applicable due date shall constitute a material breach of this Agreement by Purchaser. The schedule of deposits is as follows:

Earnest Deposits					
<u>Due Date</u>	<u>Collection Date</u>	<u>Payment Type</u>	<u>Check Number</u>	<u>Deposit Amount</u>	<u>Collection Amount</u>
06/23/2023				\$10,000.00	\$10,000.00
	06/23/2023	Online Payment			\$10,000.00
	Note: Online Payment via web				
Total				\$10,000.00	\$10,000.00

The Initial Deposit shall be deposited with Seller in its general account upon acceptance of this Agreement by Seller. Purchaser acknowledges that the Deposits will be commingled with other funds of Seller and may be used by Seller for any purpose.

b. **Disbursement.** The Initial Deposit and the Additional Deposit are hereinafter referred to, collectively and individually, as the “Earnest Money,” both individually and collectively. The Earnest Money shall be retained by Seller except as otherwise expressly provided in this Agreement. At Closing, the Earnest Money shall be credited to Purchaser against the Purchase Price; otherwise, the Earnest Money shall be disbursed as provided herein. If any dispute arises between Purchaser and Seller as to the final disposition of all or part of the Earnest Money, Seller may, but shall not be required to, interplead all or any disputed part of the Earnest Money into a court of competent jurisdiction. If Seller interpleads the Earnest Money into a court, Seller shall be entitled to recover the costs of such interpleader, including reasonable attorney’s fees incurred in connection with the interpleader, from the Earnest Money.

c. **Deposits of VA Borrowers.**

- i. Purchaser Notice Regarding Mortgage Loan. Purchaser hereby represents that it [SELECT ONE] ☐ DOES / ☒ DOES NOT intend to apply for and obtain a mortgage loan guaranteed by the U.S. Department of Veterans Affairs (a “VA Loan”) to purchase the Property. **IF PURCHASER DOES NOT CURRENTLY INTEND TO OBTAIN A VA LOAN, BUT LATER DECIDES TO OBTAIN A VA LOAN, PURCHASER SHALL PROMPTLY NOTIFY SELLER IN WRITING.**
- ii. Trust Account; Disbursement. Notwithstanding any other provision of this Agreement, if Purchaser obtains a VA Loan, the Earnest Money, Option Money (hereinafter defined), and all other sums deposited by Purchaser pursuant to this Agreement (collectively, the “Deposits”) shall be deposited in a trust account that is safeguarded from the claims of creditors of Seller until the Deposits are (A) disbursed at Closing or (B) otherwise applied or disbursed in accordance with the terms of this Agreement.

5. **SURVEY.** Seller makes no warranty or representation whatsoever regarding any matter that would be shown or revealed by an accurate survey of the Property. Purchaser acknowledges this disclaimer by Seller of any warranty or representation regarding matters of survey, and hereby elects as follows (CHECK APPLICABLE OPTION):

- ☐ **No Survey** – Purchaser elects not to obtain a current plat of survey of the Property, and Purchaser shall not be charged for a survey at Closing. Purchaser acknowledges that any title insurance policy issued in favor of Purchaser may contain an exception from coverage for all matters that would be revealed by a current survey of the Property.
- ☒ **Survey** – Purchaser elects to obtain a current plat of survey of the Property. As an accommodation to Purchaser, at Closing Seller shall provide Purchaser with a plat of survey of the Property performed by an independent, licensed surveyor for the benefit of Purchaser, showing all structures and other improvements located on the Property as of the date of the survey. The survey shall be suitable for use by Purchaser to obtain title insurance for the Property without the standard exception for matters that would be shown or revealed by a current survey of the Property. Purchaser shall be responsible for the cost of the survey (not to exceed Four Hundred Dollars (\$400)) and shall pay such cost at Closing. Seller may advance the cost of the survey for Purchaser, in which event Purchaser shall reimburse Seller at Closing. Seller makes no warranty or representation whatsoever regarding the quality, accuracy or reliability of any survey of the Property obtained for the benefit Purchaser pursuant to this subsection, and Purchaser shall look solely to the surveyor for same.

6. **WARRANTY OF TITLE.** Seller shall convey insurable fee simple title in and to the Property to Purchaser at Closing by special or limited warranty deed (the “Deed”), subject to: (a) zoning ordinances affecting the Property; (b) utility, drainage and other easements, deed restrictions or other conditions or restrictions of record upon which do not prevent use or enjoyment of the Lot or the House constructed thereon; (c) subdivision covenants, conditions and restrictions; (d) all matters shown on the final plat for the subdivision where the Property is located; and (e) any matters that would be shown or revealed by a current survey of the Lot. As used in this Agreement, “insurable fee simple title” shall mean title which a title insurance company licensed to do business in Georgia will insure at its regular rates, subject only to its standard exceptions and those exceptions listed in subsections (a) through (e) above.

7. TITLE EXAMINATION. Purchaser shall have until ten (10) days prior to the Closing Date (as defined in Section 16 below) to examine title to the Property and to furnish Seller with a written statement of any exceptions to insurable title. If Purchaser does not serve Seller with notice of exception to insurable title prior to that date, Purchaser shall have waived any objection to title to the Property as it existed as of the Effective Date. If Purchaser does serve such notice on Seller prior to that date, the notice shall specify and itemize the exceptions to insurable title. If Seller does not remove any exceptions to insurable title within a reasonable time, Purchaser shall have the right to terminate this Agreement and to receive a refund of the Earnest Money and Option Money (if any) paid to Seller. Under no circumstances shall Seller be obligated or required to remove or cure any exception to title to the Property that is a permissible exception to insurable title as defined in Section 6 above.

8. DESTRUCTION. If the home built on the Lot is either totally destroyed or substantially damaged (as determined by Seller in its sole discretion) before Closing, either party may terminate this Agreement by written notice to the other within ten (10) days after the date of such destruction. From and after the Closing (see Section 16 below), all risk of loss to the Property shall be upon Purchaser.

9. INSPECTION.

a. Procedure. Prior to Closing, Seller shall have the right to deny access to the Lot to any person at any time, as Seller determines in its sole discretion. However, Purchaser or a professional home inspector contracted by Purchaser shall have the right to enter upon the Property at reasonable times during normal business hours for the purpose of inspecting, examining, testing and surveying the Property, solely at Purchaser’s expense, provided that any such inspection must meet the following requirements and conditions (collectively, “Inspections”):

(1) Inspections by Purchaser:

(a) All Inspections by Purchaser must be scheduled through the Community Construction Superintendent. These Inspections must be scheduled at least seven (7) days in advance, must take place during normal working hours (Mon. – Fri. 8:00AM to 4:00PM) and must be in accordance with the Community Construction Superintendent’s production schedule.

(b) Seller or its appointed representative shall have the right to accompany Purchaser during the Inspections.

(2) Inspections by an independent professional home inspector:

(a) All Inspections by a professional home inspector must be scheduled through the Community Construction Superintendent at least seven (7) days in advance and must take place during normal working hours (Mon. – Fri. 8:00AM to 4:00PM). All requests for appointments to conduct an Inspection shall be subject to the Community Construction Superintendent’s production schedule. NO INSPECTIONS WILL BE ALLOWED THAT HAVE NOT BEEN SCHEDULED WITH THE COMMUNITY CONSTRUCTION SUPERINTENDENT AT LEAST SEVEN (7) DAYS IN ADVANCE. SELLER WILL NOT DELAY CONSTRUCTION OR CLOSING TO ACCOMMODATE INSPECTIONS.

(b) Seller or its appointed representative shall have the right to accompany the home inspector during the Inspection.

(c) The home inspector must maintain all business licenses required by state and local law and must be: (i) either a licensed professional engineer, or (ii) a full-time home inspector and a member of the American Society of Home Inspectors, Inc. or the Georgia Association of Home Inspectors, Inc. Furthermore, if the home inspector intends to use a drone at any time on or around the Property, the home inspector must be licensed by the Federal Aviation Administration to operate the drone. The home inspector must provide the Community Construction Superintendent with proof of all licenses and certifications required by this subsection (c) prior to, and as a requirement for, making an appointment for the Inspection.

(d) The home inspector must furnish Seller with proof that the home inspector has: (i) worker’s compensation insurance in accordance with applicable law; (ii) errors and omissions insurance with coverage of no less than \$300,000 per occurrence; (iii) general liability insurance with coverage of no less than \$300,000.00 per occurrence; and (iv) if the home inspector intends to use a drone at any time on or around the Property, aviation liability insurance with coverage of no less than \$1,000,000.00 per occurrence. The home inspector must provide the Community Construction Superintendent with proof of all insurance coverages required by this subsection (d) prior to, and as a requirement for, making an appointment for the Inspection.

Failure by Purchaser to follow the procedures set forth in this subsection shall constitute a material breach of this Agreement. Unauthorized entry onto the Lot by Purchaser, its agents or contractors shall constitute a material breach of this Agreement.

THE CLOSING SHALL NOT BE DELAYED DUE TO PURCHASER’S FAILURE TO SCHEDULE AND CONDUCT ALL INSPECTIONS SUFFICIENTLY IN ADVANCE OF CLOSING TO ALLOW SELLER TO ADDRESS ISSUES, IF ANY, IDENTIFIED BY THE INSPECTIONS.

b. Purchaser’s Indemnity. Purchaser assumes all responsibility for the acts of Purchaser, Purchaser’s agents, contractors or representatives in exercising Purchaser’s rights under this Section, and shall indemnify and hold Seller harmless from any loss or expense Seller may suffer as a result of any claim or damage which arises directly or indirectly out of Purchaser’s exercise of its rights under this Section. Notwithstanding any other provision herein, Purchaser’s indemnity of Seller pursuant to this Section shall survive Closing and the termination of this Agreement for any reason.

c. Inspection Results. In the event any inspection by Purchaser or its agents or contractors reveals a purported defect in the Property, Purchaser shall provide Seller with written notice of the claim of defect. If a professional home inspection was performed, Purchaser shall provide Seller, within 48 hours of Purchaser’s receipt, a true and complete copy of any report produced by the home inspector. If Seller determines the claim of defect is valid, Seller shall correct or repair the defect. If Seller determines the claim of defect is not valid, Seller shall notify the Purchaser of that determination within thirty (30) days of receipt of the written notice of claim of defect. Notwithstanding any other provision herein, Seller shall not be required to correct or repair any defect in construction that does not constitute a violation of: (1) the building code of the governing jurisdiction in which the Property is located, or (2) the building guidelines and standards of the provider of the Limited Warranty pursuant to Section 14(a) below.

d. Orientation Walkthrough: Purchaser may inspect the Property with Seller or Seller’s representative immediately prior to Closing, in accordance with Seller’s standard practices. Immediately after the walk-through, Purchaser and Seller shall prepare a written list of items on the Property that the parties agree should be corrected, repaired or replaced (hereinafter, the “Punch List”). Seller shall thereafter correct, repair or replace the items listed on the Punch List. Under no circumstances shall Seller be required to correct, repair or replace any items on or of the Property that are not listed on a written Punch List that has been signed by Seller. Seller’s obligation to correct, repair or replace any items that are listed on a written Punch List that has been signed by Seller shall survive Closing. UNDER NO CIRCUMSTANCES SHALL CLOSING BE DELAYED DUE TO SELLER’S FAILURE TO COMMENCE OR COMPLETE CORRECTION, REPAIR OR REPLACEMENT OF ANY ITEMS ON A PUNCH LIST. UNDER NO CIRCUMSTANCES SHALL FUNDS BE ESCROWED AT CLOSING TO COVER THE COST OF CORRECTION, REPAIR OR REPLACEMENT OF ANY ITEMS ON A PUNCH LIST.

10. REAL ESTATE BROKER AND COMMISSION. Seller represents to Purchaser that the sales agent preparing this Agreement is a licensed real estate agent in the State of Georgia. D.R. Horton Realty of Georgia, Inc., an affiliate of Seller, is the listing broker and will be paid a commission by Seller upon Closing, as hereinafter defined. Purchaser acknowledges that Seller’s sales agents represent Seller only and do not represent Purchaser or have any duty to Purchaser. Purchaser represents to Seller that Purchaser has not employed any real estate broker, agent or finder in connection with this Agreement, other than **Corey Keller**, an agent of **Watkins Real Estate Associates** and **Sherry Puckett** (collectively, “Co-Broker”). Purchaser shall indemnify and hold Seller harmless from and against any and all liabilities, losses, costs, damages and expenses (including attorneys' fees and expenses and costs of litigation) that Seller may suffer or incur because of any claim by any broker, agent or finder, whether or not meritorious, for any compensation with regard to this transaction arising out of any acts or contracts of Purchaser, other than the Co-Broker named above. Notwithstanding any other provision herein, the provisions of this Section shall survive Closing or termination of this Agreement for any reason.

11. NO RELIANCE. Purchaser acknowledges that it has not relied upon the advice or representations, if any, of Seller or Seller’s salespersons or other agents with regard to the legal and tax consequences of this Agreement or the terms and conditions of any proposed financing of the purchase of the Property. Purchaser acknowledges that if such matters are of concern to Purchaser, Purchaser must obtain independent, professional advice regarding them.

12. WOOD INFESTATION REPORT. At the time of Closing, Seller shall provide Purchaser with a letter or a soil treatment report from a pest-control company licensed in Georgia certifying that the Lot has been treated within one (1) year of the date of Closing for subterranean termite infestation. If required by Purchaser’s lender, Purchaser may obtain at Purchaser’s expense a Georgia Wood Infestation Report performed by a pest-inspection company licensed in Georgia.

13. HAZARDOUS SUBSTANCES. Purchaser acknowledges that Seller makes no representation or warranty with respect to the presence or absence of toxic waste, radon, hazardous materials or other undesirable substances on the Property. SELLER HEREBY DISCLAIMS ANY LIABILITY OR RESPONSIBILITY FOR THE PRESENCE OF ANY SUCH SUBSTANCES IN, ON, UNDER OR ABOUT THE PROPERTY.

14. WARRANTIES AND DISCLAIMER.

a. Ten-Year Limited Warranty. Seller shall provide Buyer with a written, ten-year limited warranty on the House administered by Residential Warranty Corporation (“RWC”) which shall be effective as of the Closing Date. The terms and conditions of, and exclusions from, the ten-year limited warranty shall be as set forth in that document published by RWC entitled, “LIMITED WARRANTY, 10 YEAR LIMITED WARRANTY FOR NEW HOMES,” and referred to herein as the “Limited Warranty.” At Closing, Seller shall deliver to Buyer the documentation necessary for Buyer to obtain the actual Limited Warranty for the House from RWC.

b. Manufacturers’ Warranties. At Closing, Seller shall assign to Purchaser all warranties, expressed or implied, which are given by the manufacturer of any appliance or product installed in the House.

c. Disclaimer and Limitation on Seller’s Liability. THE LIMITED WARRANTY GIVEN TO PURCHASER BY SELLER PURSUANT TO SUBSECTION 14a ABOVE IS TO THE EXCLUSION OF ALL OTHER WARRANTIES, EXPRESSED OR IMPLIED, AND SELLER HEREBY DISCLAIMS ANY AND ALL SUCH OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO ANY WARRANTY OF HABITABILITY, MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE. IN ADDITION, SELLER MAKES NO REPRESENTATION OR WARRANTY WHATSOEVER REGARDING THE PAST, PRESENT OR FUTURE CONDITION OR USE OF ANY LANDS OR AREAS SURROUNDING THE PROPERTY OR IN THE VICINITY OF THE PROPERTY. AFTER CLOSING, SELLER SHALL HAVE NO LIABILITY OR OBLIGATION TO PURCHASER OF ANY NATURE WHATSOEVER EXCEPT AS PROVIDED IN THIS SECTION 14 OF THIS AGREEMENT, IN SECTION 9(d) ABOVE AND IN SELLER’S DEED TO PURCHASER. EXCEPT AS OTHERWISE PROVIDED IN THE LIMITED WARRANTY, SELLER SHALL NOT BE LIABLE FOR ANY REASON, UNDER ANY CIRCUMSTANCES, TO PURCHASER OR ANYONE CLAIMING THROUGH PURCHASER FOR MONETARY DAMAGES OF ANY KIND, INCLUDING SECONDARY, CONSEQUENTIAL, PUNITIVE, GENERAL, SPECIAL, OR INDIRECT DAMAGES.

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Seller

15. MANDATORY BINDING ARBITRATION.

a. REQUIRED STATE DISCLOSURE REGARDING CONSTRUCTION DEFECT CLAIMS. GEORGIA LAW CONTAINS IMPORTANT REQUIREMENTS YOU MUST FOLLOW BEFORE YOU MAY FILE A LAWSUIT OR OTHER ACTION FOR DEFECTIVE CONSTRUCTION AGAINST THE CONTRACTOR WHO CONSTRUCTED, IMPROVED, OR REPAIRED YOUR HOME. NINETY DAYS BEFORE YOU FILE A LAWSUIT OR OTHER ACTION, YOU MUST SERVE ON THE CONTRACTOR A WRITTEN NOTICE OF ANY CONSTRUCTION CONDITIONS YOU ALLEGE ARE DEFECTIVE. UNDER THE LAW, A CONTRACTOR HAS THE OPPORTUNITY TO MAKE AN OFFER TO REPAIR OR PAY FOR THE DEFECTS OR BOTH. YOU ARE NOT OBLIGATED TO ACCEPT ANY OFFER MADE BY A CONTRACTOR. THERE ARE STRICT DEADLINES AND PROCEDURES UNDER STATE LAW, AND FAILURE TO FOLLOW THEM MAY AFFECT YOUR

ABILITY TO FILE A LAWSUIT OR OTHER ACTION. FOR PURPOSES OF O.C.G.A. § 8-2-35 *et seq.*, THE DEFINITION OF CONSTRUCTION DEFECT AS SET FORTH IN O.C.G.A. § 8-2-35 *et seq.* SHALL APPLY.

b. ARBITRATION. PURCHASER AND SELLER SHALL SUBMIT TO BINDING ARBITRATION IN ACCORDANCE WITH O.C.G.A § 9-9-1 *et seq.* ANY CONSTRUCTION DEFECT NOT RESOLVED AFTER FOLLOWING THE PROCEDURE DESCRIBED IN O.C.G.A § 8-2-35 *et seq* AND ANY AND ALL OTHER DISPUTES WHICH MAY ARISE BETWEEN THEM REGARDING THIS AGREEMENT AND/OR THE PROPERTY, INCLUDING BUT NOT LIMITED TO ANY DISPUTES REGARDING: (A) SELLER’S CONSTRUCTION AND DELIVERY OF THE HOME; (B) SELLER’S PERFORMANCE UNDER ANY PUNCH LIST OR INSPECTION AGREEMENT; AND (C) THE LIMITED WARRANTY PURSUANT TO SECTION 14 ABOVE. THE ARBITRATION SHALL TAKE PLACE IN THE COUNTY IN WHICH THE PROPERTY IS LOCATED. THE PROCEEDING SHALL BE CONDUCTED PURSUANT TO THE RULES OF THE AMERICAN ARBITRATION ASSOCIATION, AND TO THE EXTENT POSSIBLE, UNDER RULES WHICH PROVIDE FOR AN EXPEDITED HEARING. THE FILING FEE FOR THE ARBITRATION SHALL BE PAID BY THE PARTY FILING THE ARBITRATION DEMAND, BUT THE ARBITRATOR SHALL HAVE THE RIGHT TO ASSESS OR ALLOCATE THE FILING FEES AND ANY OTHER COSTS OF THE ARBITRATION AS A PART OF THE ARBITRATOR’S FINAL ORDER. THE ARBITRATION SHALL BE BINDING AND FINAL, AND EITHER PARTY SHALL HAVE THE RIGHT TO SEEK JUDICIAL ENFORCEMENT OF THE ARBITRATION AWARD. NOTWITHSTANDING ANY OTHER PROVISION HEREIN, ANY DISPUTES ARISING UNDER THE LIMITED WARRANTY SHALL BE MEDIATED, ARBITRATED AND/OR JUDICIALLY RESOLVED PURSUANT TO THE TERMS, CONDITIONS, PROCEDURES AND RULES OF THAT WARRANTY PROGRAM. NOTWITHSTANDING THE FOREGOING, SELLER SHALL HAVE THE RIGHT TO INTERPLEAD ALL OR ANY PART OF THE EARNEST MONEY INTO A COURT OF COMPETENT JURISDICTION AS PROVIDED FOR IN SECTION 4 HEREIN. ALL ARBITRATION HEARINGS WILL BE COMMENCED WITHIN NINETY (90) DAYS OF THE DEMAND FOR ARBITRATION. NOTWITHSTANDING THE FOREGOING, THE ARBITRATION PROVISIONS OF THIS SUBSECTION (B) SHALL NOT APPLY IN THE EVENT THAT THE DISPUTE RELATES TO A DEFAULT BY THE SELLER UNDER SECTION 16(F) OF THIS AGREEMENT.

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16. CLOSING. The following shall constitute the “Closing”: (a) receipt by the settlement agent of all funds necessary to close the transaction, (b) receipt by the settlement agent of the fully executed Deed in recordable form, (c) execution of the closing disclosure by Purchaser, Seller and the settlement agent, and (d) payment to Seller of the net proceeds of sale due to Seller. The date on which the closing disclosure is executed by all parties is referred to herein as the “Closing Date.” Closing shall not be complete until Seller has received full payment of the Purchase Price. Closing shall be scheduled and conducted as follows:

a. Closing Date. Seller shall notify Purchaser of the final date and time of Closing (the “Closing Date”) at least three (3) business days in advance. Purchaser’s failure to close on the final Closing Date set by Seller shall constitute a material breach of this Agreement by Purchaser. In addition to and without waiving any rights and remedies which Seller shall have pursuant to Section 18 below, Seller, at Seller’s option, may extend the Closing Date; provided that Seller shall retain the right to terminate this Agreement and to retain Purchaser’s Earnest Money and option money (if any) at any time prior to actual Closing. Subject only to the provisions of Section 27 below, Closing shall occur no later than that date which is two (2) years after the date that Purchaser signs this Agreement.

b. Exchange at Closing. At Closing, Seller shall deliver to Purchaser the Deed for the Property, a certificate of occupancy for the house located on the Property issued by the applicable governmental authority, and, if applicable, a certificate of final approval by the FHA or VA. At Closing, Purchaser shall pay to Seller the Purchase Price in full.

c. Place of Closing. The Closing shall take place at the office of the closing attorney selected by Purchaser, or at such other place as the parties may agree in advance. The Purchaser hereby selects MCMICHAEL & GRAY, P.C. JACOBO, KARMAN, 2300 Camp Creek Parkway, COLLEGE PARK, GA (the “Closing Attorney”) to handle the Closing of the transaction contemplated in this Agreement. In the event that Purchaser obtains a Loan to purchase the Property, the parties hereto acknowledge that the Closing Attorney shall represent the lender.

d. Closing Costs. Seller shall pay for preparation of the deed and any property transfer tax imposed by the State of Georgia. Except as may be prohibited by FHA or VA regulations, Purchaser shall pay for all other costs related to the Closing, including but not limited to all costs incurred by Purchaser in financing its purchase of the Property.

e. Prorations. All real property taxes for the current year, homeowner association dues and assessments (but not homeowner association capital assessments due at or after the Closing) and hazard insurances premiums (if applicable), shall be prorated as of the date of Closing, using the most accurate information available on the Closing Date.

f. Completion of House. If the House is not Complete at the time that the Purchaser signs this Agreement, Seller shall Complete the House within 2 years after the date that the Purchaser signs this Agreement, subject to extensions for circumstances reasonably beyond Seller’s control as determined by Georgia law. For purposes of this subsection (f), “Complete” means that the House is ready for occupancy by Purchaser, has all necessary and customary utilities extended to it, and a certificate of occupancy has been issued. Notwithstanding any provision in this Agreement to the contrary, including but not limited to Section 18(b), nothing herein shall limit Purchaser’s remedies if Seller defaults under this subsection (f).

17. UTILITIES AND PERSONAL PROPERTY. Purchaser shall transfer all utilities into Purchaser’s name within three (3) business days after Closing. Purchaser shall not move any personal property onto the Property prior to Closing.

18. DEFAULT; REMEDIES. The remedies specified below shall be the sole and exclusive remedies available to the parties in the event of breach of this Agreement prior to Closing or termination of this Contract, and shall be to the exclusion of all other remedies at law or in equity.

a. Purchaser’s Default. If Purchaser defaults on any of its obligations hereunder prior to Closing or termination of this

Contract, Seller’s sole and exclusive remedy shall be to terminate this Agreement by written notice to Purchaser; whereupon, Seller shall retain all Earnest Money and Option Money (if any) paid by Purchaser to Seller as liquidated damages. Thereafter, neither party shall have any further liability or obligation to the other hereunder.

b. Seller’s Default. If Seller defaults on any of its obligations hereunder prior to Closing or termination of this Contract, Purchaser’s sole and exclusive remedy shall be either: (a) to terminate this Agreement by written notice to Seller, whereupon Purchaser shall be entitled to recover all Earnest Money and Option Money (if any) paid to Seller, or (b) to seek specific performance of this Agreement by serving written notice of default on Seller and by instituting mandatory binding arbitration of Purchaser’s claim of default and demand for specific performance. Notwithstanding the foregoing, nothing in this subsection (b) shall limit the Purchaser’s remedies in the event that Seller defaults under Section 16(f) of this Agreement.

c. Post-Closing and Post-Termination Remedies. Notwithstanding subsections a and b above, from and after the Closing or any termination of this Contract, each party shall have the right to pursue its actual (but not consequential or punitive) damages against the other party for breach of any covenant or agreement contained herein that expressly survives the Closing or termination of this Contract.

19. TIME/DATE. The Effective Date of this Agreement shall be the date of signing of this Agreement by Seller. **Time is of the essence** as to the occurrence of all events, the satisfaction of all conditions and the performance of all obligations hereunder.

20. RESTRICTIVE COVENANTS; HOMEOWNERS ASSOCIATION. Purchaser acknowledges receipt of a copy of that certain declaration of covenants, conditions and restrictions for Oaks at Cedar Grove Subdivision, together with all amendments thereto (collectively, the “Declaration”). Purchaser acknowledges that the Property is subject to the Declaration and that, upon purchase of the Property, Purchaser shall personally be subject to all the provisions of the Declaration, including but not limited to provisions requiring membership in and payment of assessments to any homeowners association for the Subdivision (the “Association”). Purchaser further acknowledges that Purchaser will be required to pay certain fees and assessments to the Association as follows:

- a. The current **regular assessment** (i.e., dues) due to the Association is \$ 750.00 payable:

☒ annually

☐ bi-annually

☐ quarterly

☐ monthly
- b. The current **initial fee or assessment** due to the Association at Closing is \$ 750.00.

PURCHASER ACKNOWLEDGES THAT THE DECLARATION MAY BE AMENDED FROM TIME TO TIME AS PROVIDED THEREIN, AND THAT THE AMOUNTS TO BE PAID BY PURCHASER TO THE ASSOCIATION MAY CHANGE AT ANY TIME.
Purchaser further acknowledges that, in addition to the Association fees and assessments described above, Purchaser is responsible for the following fees at Closing: any capital contributions, transfer fees, closing letter fees, and administrative fees payable to the Association management company. Purchaser acknowledges that said fees and charges are subject to change at any time at the discretion of the management company and that Seller is not affiliated with the management company.

21. SUCCESSORS AND ASSIGNS; INTERPRETATION. This Agreement shall inure to the benefit of, and be binding upon, the parties hereto and their heirs, successors, administrators, executors and assigns. Purchaser shall not have the right to assign Purchaser’s interest in this Agreement. As required by context herein, the singular shall include the plural, and the neuter shall include the masculine and the feminine.

22. ENTIRE AGREEMENT; AMENDMENT. This document contains the sole and entire agreement between the parties hereto with regard to the Property. All prior discussions have been merged into this Agreement. No representation, statement, promise or inducement shall be binding upon either party hereto unless specifically stated in this Agreement. This Agreement may not be modified except by a writing signed by both parties.

23. SEVERABILITY. If any provision of this Agreement shall be declared invalid or unenforceable by laws applicable thereto, or unenforceable as to certain parties, then the performance of such provision shall be excused by the parties hereto and the remaining provisions of this Agreement shall remain in full force and effect.

24. NO-WAIVER. Any failure or delay of Purchaser or Seller to enforce any term of this Agreement shall not constitute a waiver of such term, it being explicitly agreed that such a waiver must be specifically stated in a writing delivered to the other party in compliance with Section 28 below. Any such waiver by Purchaser or Seller shall not be deemed to be a waiver of any other breach or of a subsequent breach of the same or any other term.

25. ADDENDA AND EXHIBITS.

- a. **Addenda.** The following Addenda are attached hereto and incorporated herein:

☒ (1) Addendum 1, Builder’s Referral Incentives and Contributions Addendum

☒ (2) Addendum 2, SELECT ONE:

☐ New Construction

☒ To Be Built (Express only)

☐ Construction in Progress

☐ Construction Completed

☐ Addendum 3, Sale of Current Residence Contingency

☒ Addendum 4, Co-Broker Addendum

☐ Addendum 5, Real Estate Commission Rebate Addendum

☐ Addendum 6, Alternative Incentive Addendum

- ☒ Addendum 7, Special Stipulations
- ☒ Addendum 8, Real Estate Certification
- ☐ Addendum 9, Model House
- ☐ Addendum 10, Marketplace Homes Addendum
- ☒ Smart Home Disclosure Addendum
- ☐ Subdivision-specific addenda
- ☐ Exhibit B, Stages of Construction

b. **Exhibits.** The following Exhibits are attached hereto and incorporated herein:
(1) Exhibit A, Options and Premiums

26. NOTICE. Except when specifically provided otherwise herein, any notices required to be given hereunder must be in writing. Notice shall be deemed delivered upon receipt or refusal if deposited in the United States Mail, Certified Mail, Return Receipt Requested, postage prepaid, properly addressed to the party to be served. Notice shall also be deemed given if delivered to the address for service of notice shown below by Federal Express, UPS or other nationally recognized overnight carrier service, with no signature or receipt required. In addition, Seller may give notice to Purchase via email sent to the email address shown under Purchaser’s signature below. Each party warrants that its correct mailing address for service of notices is shown below. Purchaser warrants that its correct telephone number and email address are shown below. A party may change its address for service of notice by giving the other party written notice of the change of address.

27. EXCUSED DELAYS. Notwithstanding any other provision herein, if Seller is delayed in performing any of its obligations hereunder or meeting any specified completion dates by labor disputes, fire, delays in deliveries, adverse weather conditions, unanticipated damage to or destruction of the Property, governmental controls or moratoria, acts of God or any other causes beyond Seller’s reasonable control, then the time-period specified herein for performance of such obligation and/or meeting such completion date shall be extended a sufficient number of working days to enable and allow Seller to perform and/or complete the obligation. Notwithstanding the foregoing, nothing in this Section 27 shall be construed as limiting the Seller’s obligations under Section 16(f) of this Agreement.

28. OFFER. This instrument shall be regarded as an offer by the first party to sign until fully executed by both parties, at which time it shall become binding on both parties.

29. ELECTRONIC SIGNATURES AND TRANSMISSIONS. This Agreement may be executed by electronic means via DocuSign. Such signatures shall be deemed to constitute originals for all purposes hereunder. In addition, if either party transmits executed documents in electronic format via facsimile or email, then the other party may rely upon such documents as if they were executed originals.

WHEN SIGNED BY BOTH PARTIES, THIS DOCUMENT WILL BECOME A BINDING CONTRACT IMPOSING LEGALLY ENFORCEABLE OBLIGATIONS UPON YOU. SELLER’S SALES REPRESENTATIVE DOES NOT HAVE AUTHORITY TO EXECUTE THIS CONTRACT ON BEHALF OF SELLER OR OTHERWISE BIND SELLER. IF YOU DO NOT FULLY UNDERSTAND THIS DOCUMENT OR IF YOU DO NOT FEEL IT MEETS YOUR NEEDS, YOU SHOULD CONSULT A REAL ESTATE ATTORNEY BEFORE SIGNING IT.

IN WITNESS WHEREOF, the parties hereto have executed this Home Purchase Agreement on the dates indicated below.

PURCHASER:

DocuSigned by:

Godwill Atem Atem

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6/23/2023

Buyer: Godwill Atem Atem

Date

Purchaser’s Current Mailing Address:

2460 Spring RoadApt # D37

Gainesville, Georgia 30504

Purchaser’s Home Phone:

Mobile Phone: 6785164580

Work Phone:

Purchaser’s Email: atemgodwill17@gmail.com

Co-Buyer’s Current Mailing Address:

,

Co-Buyer’s Home Phone:

Mobile Phone:

Work Phone:

Co-Buyer’s Email:

SELLER:

D.R. Horton, Inc., a Delaware corporation, d/b/a
Freedom Homes

DocuSigned by:

Bonnie L Slaydon

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6/27/2023

Bonnie L Slaydon

Date

Officer, D.R. Horton

Seller’s Address:

8800 Roswell Road

Building B, Suite 100

Sandy Springs, Georgia 30350

Seller’s Phone: 770-730-7900

For Internal Purposes Only:

Seller’s Sales Representative:

DocuSigned by:

kenyata T Stewart

D9E450C8077A4C2...

6/23/2023

Sales Rep: Kenyata Tashakent
Stewart

Date

Sales Rep License No.: 243731

Firm License No.: H-66418

Page 7 of 7

GA Home Purchase Agreement (Rev. 2.22.22)



ADDENDUM 1
BUILDER’S REFERRAL INCENTIVES AND CONTRIBUTIONS ADDENDUM

This **ADDENDUM** is attached to and made a part of that Home Purchase Agreement between **D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes**, as Seller, and **Godwill Atem Atem**, as Purchaser (the “Purchase Agreement”), regarding that parcel of real estate located in **FULTON** County, **GA**, briefly described as Lot **0112, Oaks at Cedar Grove**, and referred to in the Purchase Agreement as the “Lot.” All terms defined in the main text of the Purchase Agreement shall have the same meanings when used in this Addendum. This Addendum, together with the Purchase Agreement, constitutes the sole and entire agreement between Seller and Purchaser with regard to any incentives, allowances, adjustments, credits, discounts, rebates or other contributions of any kind or amount (collectively, the “Referral Incentives and Contributions”) made, or to be made, by Seller to Purchaser in connection with Seller’s referral of Purchaser to SELLER’S PREFERRED MORTGAGE LENDER(S) DESCRIBED BELOW (“PREFERRED LENDER”), and there are no agreements regarding such Referral Incentives and Contributions, whether written or unwritten, expressed or implied, between the parties except as set forth in this Addendum. In the event of any conflict between the terms and provisions of this Addendum and the terms and provisions of the main text of the Purchase Agreement, the terms and provisions of this Addendum shall control.

Purchaser acknowledges receipt of that document entitled, “Notice of Seller’s Business Affiliations” (the “Affiliation Notice”), and Purchaser confirms its understanding that Seller has an affiliation with DHI MORTGAGE COMPANY, LTD. (“DHI MORTGAGE”) and that Purchaser is not required to use this affiliated company or any Preferred Lender (described below) as a condition of Purchaser’s purchase of the Property or Purchaser’s access to settlement services in connection with the purchase of the Property. The parties state, acknowledge and agree as follows:

1. Preconditions. Seller shall provide for the benefit of Purchaser the Referral Incentives and Contributions listed in Section 2 below, **provided that** Purchaser chooses to use DHI MORTGAGE to finance the purchase of the Property and **provided that each and all of the following occur**:

- a. Purchaser applies to DHI MORTGAGE for a mortgage loan to finance the purchase of the Property within the timeframe required under Section 2(b) of this Purchase Agreement;
- b. Purchaser’s loan application is approved by DHI MORTGAGE, and DHI MORTGAGE actually funds the loan and finances the purchase of the Property;
- c. Purchaser closes on the purchase of the Property on or before the final date and time for Closing set by Seller pursuant to subsection 16(a) of the Purchase Agreement; and
- d. Purchaser uses the closing attorney recommended by Seller to act as settlement agent and close the purchase of the Property.

2. Closing Costs. Provided that all the conditions set forth in Section 1 above are satisfied and met in a timely manner, Purchaser shall be entitled to a contribution from Seller towards Purchaser’s closing costs in an amount up to **\$5,000.00**. This contribution, up to the applicable limit, shall be applied against closing fees / costs actually charged to Purchaser, in the following order (as applicable): Temporary Buydowns (if applicable), Origination Charge, Origination Fee, Processing Fee, Upfront Unfinanced Mortgage Insurance (if applicable), Discount Points (if applicable).

If any of the maximum amount of contribution remains unapplied after payment of all of the above listed closing costs, then the remainder shall be applied against other usual and customary closing costs actually charged to Purchaser by other settlement service providers. Notwithstanding the foregoing: (i) any contribution by Seller to Purchaser’s closing costs shall be subject to Purchaser’s loan program and any lender guidelines or restrictions, (ii) no portion of the maximum amount of contribution available to Purchaser pursuant to this Section 2, may be applied as a credit to, or in partial payment of, the Purchase Price of the Property or disbursed to Purchaser, and (iii) any unapplied portion of the maximum amount of contribution shall be forfeited by Purchaser.

3. Options Allowance. Provided that all the conditions set forth in Section 1 above are satisfied and met in a timely manner, Seller agrees to provide Purchaser an allowance in the amount of **\$4,875.00**, which amount may be applied by Purchaser as a credit against amounts owed to Seller for any optional features, material upgrades, landscape improvements, or decorator items selected by Purchaser to be installed on or in the Property and included in the Purchase Price for the Property as set forth in the Purchase Agreement and addenda and exhibits thereto.

4. Preferred Lender. The PREFERRED LENDER relating to this Builder’s Referral Incentive and Contributions Addendum is DHI Mortgage. More information regarding DHI Mortgage is available at: www.dhimortgage.com.

Purchaser’s decision to use any lender other than PREFERRED LENDER will not affect any concessions, incentives or discounts offered by Seller for the purchase of the Property other than the closing cost contributions and options allowance described in Sections 2 and 3 above.

IN WITNESS WHEREOF, THE UNDERSIGNED, HAVING READ AND REVIEWED THIS ADDENDUM, HAVE SIGNED THIS ADDENDUM ON THE DATE SHOWN BELOW.

Purchaser:

DocuSigned by:

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Buyer: Godwill Atem Atem
Date 6/23/2023

Seller:

D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes
DocuSigned by:

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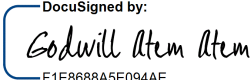
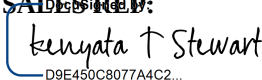
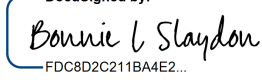
Bonnie L Slaydon
Officer, D.R. Horton
Date 6/27/2023

ADDENDUM 2
TO BE BUILT ADDENDUM

This Addendum is attached to and made a part of that Home Purchase Agreement (the “Agreement”) between **Godwill Atem Atem** as Purchaser and D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes, as Seller, regarding that parcel of land located in **FULTON** County, Georgia, briefly described as Lot **0112, Oaks at Cedar Grove** and referred to in the Agreement as the “Lot.” All terms defined in the main text of the Agreement shall have the same meanings when used in this Addendum. Purchaser and Seller further agree as follows:

- 1. CONSTRUCTION OF HOUSE.** Prior to Closing, Seller shall construct a single-family ☒ detached ☐ townhouse residence (the “House”) on the Lot. Seller shall not be required to commence construction of the House unless and until: (a) the Loan has been approved by Purchaser’s lender to Seller’s satisfaction; (b) Purchaser has paid all amounts then due to Purchaser’s lender and to Seller; and (c) all contingencies to Purchaser’s performance hereunder have been satisfied or removed to Seller’s satisfaction.
- 2. HOUSE PLAN.** Seller shall construct the House according to the **ROBIE** Plan, Elevation **E**, including those features listed on that Included Features List (Exhibit A) attached to the Agreement and incorporated herein, on a slab (the “Base Plan”). Seller’s obligation to construct the House shall be contingent on Seller’s ability: (a) to place the House on the Lot without obtaining variances from any set-backs or other dimensional requirements, and (b) to construct the House on the Lot without incurring abnormal costs for foundation, slab or structural support walls. If Seller determines that either of these contingencies cannot be satisfied to Seller’s satisfaction, then Seller may terminate this Agreement upon written notice to Purchaser, in which event the Earnest Money and the Option Money (if any) shall be refunded to Purchaser. Seller shall determine the placement and orientation of the House on the Lot in Seller’s sole discretion. Purchaser acknowledges that the House shall be handmade and unique, and that although the House shall be based on the Base Plan, variations from the Base Plan will occur. Seller shall not be responsible for such variations from the Base Plan. Purchaser also acknowledges that brochures, models and displays used by Seller’s sales agents are for general illustrative purposes only, and are not to be relied upon as representations of actual locations, dimensions, specifications or finished products. Subject only to the provisions of subsections 9.c and 14 of this Agreement, Closing shall constitute acceptance of the House AS BUILT, and Purchaser hereby waives any right to object to any variation in construction from the Base Plan after Closing.
- 3. HEATING AND AIR CONDITIONING.** The House shall be adequately and efficiently heated and air-conditioned with equipment having at least the minimum specifications for the House as established by Load Calculations, Manual J and the Georgia Construction Codes. The clothes dryer shall vent to the outside.
- 4. OPTIONS; CHANGES.** Purchaser acknowledges that the House shall include those standard features listed in Exhibit A attached hereto and incorporated herein. Seller shall not be required to allow any changes to the House after the execution of this Agreement. If Purchaser requests a change and Seller agrees to the change, Purchaser shall pay to Seller a Change Fee in the amount of Two Hundred Fifty Dollars (\$250.00) for each such change at the time the request is approved by Seller. Any Change Fee paid shall be nonrefundable and shall not be credited against the Purchase Price. Any changes shall not be effective unless evidenced by a written amendment to this Agreement. At the time of execution of that amendment, Purchaser shall pay to the Seller the total increase in the Purchase Price resulting from the change (the “Option Money”). Any Option Money paid to Seller at any time shall not be held in escrow, and shall be nonrefundable to Purchaser except in the event of: (1) breach of this Agreement by Seller, or (2) termination of this Agreement by Seller pursuant to Section 2 above. Upon Closing, all Option Money previously paid to Seller shall be credited to Purchaser against the Purchase Price. Purchaser recognizes that any such changes to the House may affect the completion date.
- 5. COMPLETION.** Subject to the contingencies stated herein, Seller shall complete construction of the House prior to Closing. Seller shall construct the House according to all applicable governmental codes and regulations. Seller reserves the right to substitute materials or items to be used in the construction of the House with materials or items of equal or comparable value. Construction of the House shall be deemed complete when a certificate of occupancy is issued for the House by the applicable governmental authority. Seller shall deliver the completed House to Purchaser at Closing in “broom-clean” condition, ready to occupy. The House and Lot shall be free of all trash and debris.
- 6. PURCHASER’S INQUIRIES.** Purchaser shall direct all inquiries and questions to Seller’s on-site associate. The on-site associate will provide Purchaser with timely responses; however, the associate does not and shall not have authority to change the terms of this Agreement in any manner. This Agreement may be changed or modified only by a written amendment duly executed by both Purchaser and Seller. Purchaser acknowledges that Seller’s sales associates, superintendents, closing staff, warranty staff and other employees **do not** have authority to modify this Agreement. Only an authorized corporate officer of Seller may modify this Agreement on Seller’s behalf.

IN WITNESS WHEREOF, THE UNDERSIGNED, HAVING READ AND REVIEWED THIS ADDENDUM, HAVE SIGNED THIS ADDENDUM ON THE DATES SHOWN BELOW.

PURCHASER:	SALES REP:
DocuSigned by:  F1E8688A5E094AE...	DocuSigned by:  D9E450C8077A4C2...
6/23/2023	6/23/2023
Buyer: Godwill Atem Atem	Sales Rep: Kenya Tashakent Stewart
Date	Date
	SELLER:
	D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes
	DocuSigned by:  FDC8D2C211BA4E2...
	6/27/2023
	Bonnie L Slaydon
	Officer, D.R. Horton
	Date

ADDENDUM 4

CO-BROKER ADDENDUM

Seller: D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes

Purchaser(s): Godwill Atem Atem

Contract Date: 06/23/2023

Property: 8255 BLUEWATER DRIVE, FAIRBURN, GA 30213

Lot 0112, Oaks at Cedar Grove Subdivision

Real Estate Agency: Watkins Real Estate Associates

Real Estate Agent: Corey Keller

Sales Agent License No.: 370349

Real Estate Broker: Sherry Puckett

Agency Address: 169 Decatur Road, McDonough, Georgia 30253, US

Broker License No.: 240400

This Co-Broker Addendum ("Addendum") is being provided pursuant to the Home Purchase Agreement ("Contract") by and between Seller and Purchaser, for the purchase and sale of the above-referenced Property. Capitalized terms not otherwise defined herein shall have the same means as ascribed to them in the Contract. If any term or condition of this Addendum conflicts with any term or condition of the Contract, the terms and conditions of this Addendum shall prevail.

Commission. Purchaser hereby identifies and designates the above named Sales Agent, Real Estate Broker and Real Estate Agency, collectively, as “Co-Broker,” as provided in Section 10 of the Agreement. Subject to the terms and provisions of the Agreement and this Addendum, and provided that Closing actually occurs, Co-Broker will receive a real estate sales commission at Closing determined as (a) 300.00% multiplied by (b) the “Sale Price of Property” shown on the Closing Disclosure (or “Contract sales price” shown on Line 401 of HUD-1 Settlement Statement) at Closing (the “Base Commission”). For the purposes of this Addendum, the term “Commission” is intended to include the Base Commission and all other commissions, incentives, and bonuses, if any, to be received by Co-Broker in connection with the purchase and sale of the Property pursuant to the Agreement. No commission of any kind shall be earned or due unless and until Closing occurs. The Commission shall be subject to limitations, if any, on total broker commission imposed by Purchaser’s lender. The Commission shall be paid at Closing and must be shown on the closing disclosure or settlement statement.

1. **Bonus Commission.** The subsection checked below shall apply:
- ☒ No bonus commission shall be due or paid.

OR

☐ If Closing occurs on or before , then, at Closing, the Co-Broker shall be paid an additional, bonus commission in the amount specified in the sub-subsection checked below:

☒ \$0.00

OR

☐ % multiplied by (b) the “Sale Price of Property” shown on the Closing Disclosure (or “Contract sales price” shown on Line 401 of HUD-1 Settlement Statement) at Closing.
2. **Rebate Certification.** With regard to the Commission, Co-Broker hereby acknowledges and certifies that it (*check applicable box*):
- ☒ **WILL NOT** rebate* to Purchaser part or all of the Commission.

Co-Broker acknowledges and agrees that **no** rebate by Co-Broker, the above-named Real Estate Agency, or any other party of any portion of the Commission will be made directly to, or indirectly on behalf of, Purchaser or any other interested and/or related party, or used to pay Purchaser costs associated with purchase and sale of the above-referenced Property.

☐ **WILL** rebate* to Purchaser part or all of the Commission.

Co-Broker acknowledges and agrees to execute a "Real Estate Commission Rebate Addendum" to the Contract to disclose the terms of such rebate in order to create transparency with regard to how such rebate applies to the purchase and sale of the above-referenced Property.

** The term “rebate” is intended to include any incentive related to the purchase and sale of the above-referenced Property, including but not limited to: a cash rebate, credit rebate of closing costs, buy-out of a lease or related borrower financial obligation, purchase of appliances or related merchandise, prizes and/or trips. Rebates may not be used to pay for options or any other portion of the Purchase Price.*

3. Co-Broker recognizes that Seller is relying on the certification set forth in Section 3 above as verification of whether or not any rebate of any portion of the Commission is to take place. A rebate occurring outside of the Closing does not preclude the Co-Broker from acknowledging that such a rebate will occur.
4. In the event that a change of circumstance arises where Co-Broker decides at a later date to rebate any portion of the Commission to Purchaser, Co-Broker agrees to execute a “Real Estate Commission Rebate Addendum” to be added by amendment to the Contract to disclose the terms of such rebate in order to create transparency with regard to how such rebate applies to the purchase and sale of the above-referenced Property and to deliver the Real Estate Commission Rebate Addendum (executed by Co-Broker and Purchaser) to Seller.

PURCHASER:

DocuSigned by:

Godwill Atem Atem

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6/23/2023

Buyer: Godwill Atem Atem

Date

For Internal Purposes Only:

SELLER SALES REP:

DocuSigned by:

kenyata ↑ Stewart

D9E450C8077A4C2...

6/23/2023

Sales Rep: Kenyata Tashakent Stewart

Date

CO-BROKER:

DocuSigned by:

Corey Keller

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6/23/2023

Broker Agent: Corey Keller

Date

SELLER:

D.R. Horton, Inc., a Delaware corporation, d/b/a
Freedom Homes

DocuSigned by:

Bonnie L Slaydon

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6/27/2023

Bonnie L Slaydon

Date

Officer, D.R. Horton

ADDENDUM 7
SPECIAL STIPULATIONS

This ADDENDUM is attached to and made a part of that Home Purchase Agreement (the “Agreement”) by and between D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes, as Seller, and **Godwill Atem Atem**, as Purchaser (the “Agreement”) regarding that certain parcel of real estate located in **FULTON** County, Georgia, briefly described as Lot **0112, Oaks at Cedar Grove** Subdivision and referred to in the Agreement as the “Lot.” All terms defined in the main text of the Agreement shall have the same meanings when used in this Addendum. Notwithstanding any other provision of the Agreement, Seller and Purchaser agree as follows:

1. All parties agree that the selling agent is apart of The Elite Agent Program.

IN WITNESS WHEREOF, THE UNDERSIGNED, HAVING READ AND REVIEWED THIS ADDENDUM, HAVE SIGNED THIS ADDENDUM ON THE DATES SHOWN BELOW.

PURCHASER:

DocuSigned by:

Godwill Atem Atem

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6/23/2023

Buyer: Godwill Atem Atem

Date

SELLER:

D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes

DocuSigned by:

Bonnie L Slaydon

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6/27/2023

Bonnie L Slaydon

Date

Officer, D.R. Horton

ADDENDUM 8

REAL ESTATE CERTIFICATION

PURCHASER:

Godwill Atem Atem
2460 Spring RoadApt # D37
Gainesville, Georgia 30504

SELLER:

D.R. Horton, Inc.
8800 Roswell Road
Building B, Suite 100
Sandy Springs, Georgia 30350

DATE: June 23, 2023

This Real Estate Certification (“**Certification**”) is attached to and forms a part of the Home Purchase Agreement (“**Purchase Agreement**”), executed between Purchaser and Seller for the Property described in the Purchase Agreement. Any capitalized terms not otherwise defined herein shall have the meanings as set forth in the Purchase Agreement.

The Purchaser, the Seller and the selling real estate agent or broker involved in the sales transaction certify that:

1. The terms and conditions of the Purchase Agreement are true, to the best of their knowledge and belief; and
2. Any other agreement entered into by any parties in connection with the real estate transaction is part of, or attached to, the Purchase Agreement.

PURCHASER

DocuSigned by:

Godwill Atem Atem

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6/23/2023

Buyer: Godwill Atem Atem

Date

SELLER:

DocuSigned by:

Bonnie L Slaydon

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6/27/2023

D.R. Horton, Inc., a Delaware corporation, d/b/a
Freedom Homes

Bonnie L Slaydon

Date

Officer, D.R. Horton

DocuSigned by:

Corey Keller

E5EE840C2DEF4B8...

6/23/2023

Broker Agent: Corey Keller

Date

EXHIBIT A

OPTIONS AND PREMIUMS

Seller will include the following options, premiums and upgrades selected by Purchaser (the "Initial Options") at the prices indicated below. Payment for the Initial Options in the amount stated below (which payment shall constitute "Option Money" for all purposes under the Agreement) must be made to Seller simultaneously with the execution of this Agreement. In the event Seller omits the installation of any Initial Option in the House, Seller's responsibility shall be limited to a refund of the applicable price or allowance stated below. Any such omission shall not invalidate this Agreement, constitute a breach of its terms or give rise to any claim for damages against Seller. The Initial Options are as follows:

(No color selections found.)

Selected Options

05 – Exterior Doors						
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price
JGDO00XX	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 440.00	\$ 440.00
Color:			Location:			
GARAGE DOOR OPENER-WITH TWO TRANSMITTER						

Sub-Total

\$ 440.00

06 – Windows & Screen							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
BLIN00D2	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$2,700.00	\$2,700.00	
Color:			Location:				
BLINDS LEVEL 1 - 2 STORY PLAN,1 YR WTY DOES NOT INCL 2 STORYWNDWS FRT DR S/L TRNSM & BSMT							
SCREENS2	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color:			Location:				
SCREENS - 2 STORY PLANS							

Sub-Total

\$2,700.00

13 – Plumbing							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
BOWL00EX	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color:			Location:				
EXTRA BOWL							
UNDERMNT	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color:			Location:				
UNDERMOUNT KITCHEN SINK STAINLESS STEEL 50/50 BOWL							

Sub-Total

\$ 0.00

15 – Electrical							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
DEAKOXXX	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color:			Location:				
DEAKO SWITCHES							

Sub-Total

\$ 0.00

22 – Lighting							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
LITE00C1	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color:			Location:				
LVL 1 COACH LIGHT (49625030)							

Sub-Total

\$ 0.00

25 – Appliances							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
WEW00L1S	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color:			Location:				
APPLIANCE PKG-LEVEL 1-ELECTRICWHIRLPOOL-RANGE/MICRO/DISHWAS HER-STAINLESS							
WR000012	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$1,735.00	\$1,735.00	
Color:			Location:				
APPLIANCE-REFRIGERATOR-LEVEL 1SIDE X SIDE-WHIRLPOOL-WRS315SDHM - STAINLESS STEEL							

Sub-Total

\$1,735.00

36 – Flooring-Tile							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
CARPSTD1	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color: BIRDBATH			Location:				
CARPET-STD-REKINDLE 5LB PAD							
JUV20001	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color: SAFARA			Location:				
VINYL IN STANDARD AREAS							

Sub-Total

\$ 0.00

39 – Flooring-Laminate							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
REVWOOD1	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color: NUTMEG CHESNUT			Location:				
REVWOOD-KINGSCOURT 8MM-5 1/4"W							

Sub-Total

\$ 0.00

40 – Series Options							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
EXTFINSH	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color: SCHEME EP -Y - WHITE WINDOW			Location:				
EXTERIOR FINISH SCHEME Siding-SW7004 Snowbound / Shake-SW7004 Snowbound / B&B-SW7004 Snowbound / Front door/Shutters-SW6258 Tricorn Black / Gutters-30 Degree white / Garage Door-SW7004 Snowbound / Trim & Columns-SW7004 Snowbound / Windows-white / Brick- CASTLE ROCK TUDOR							
JSERS00X	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color:			Location:				
EXPRESS SERIES - SLAB							

Sub-Total

\$ 0.00

50 – Cabinets							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
CABINET2	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color: ELKIN STONE GRAY			Location:				
CABINETS							
JCBU00LT	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color: WHITE JUPURANA			Location:				
LAMINATE TOP-COLOR							
CABINET UPGRADES							

Sub-Total

\$ 0.00

51 – Countertops/Backspls							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
1GRANITE	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color: DALLAS WHITE			Location:				
GRANITE 2CM LVL 1-WITH 4" BACKSPLASH							

Sub-Total

\$ 0.00

54 – Vanity/Tub/Shower							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
JSHWRDOR	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color:			Location:				
SHOWER ENCLOSURE-(MASTER) CHROME W/CLEAR GLASS							

Sub-Total

\$ 0.00

70 – Structural Interior							
Option #	Rev. #	Rev. Date	User	Qty.	Unit Price	Ext. Price	
JDMB00XX	0	06/23/2023	Kenyata Tashakent Stewart	1.0000	\$ 0.00	\$ 0.00	P
Color:			Location:				
OPTIONAL BATH 1							

Sub-Total

\$ 0.00

IF – Interior Finish							
Option #	Rev. #	Rev. Date	User		Qty.	Unit Price	Ext. Price
JIPT0001	0	06/23/2023	Kenyata Tashakent Stewart		1.0000	\$ 0.00	\$ 0.00
Color: CITY LOFT				Location:			
INTERIOR PAINT							
						Sub-Total	\$ 0.00
						Total:	\$4,875.00

Unadjusted Base Price:	\$342,990.00
Total Plan Adjustments:	<\$4,875.00>
Unadjusted Lot Premium:	\$4,000.00
Total Lot Premium Adjustments:	\$ 0.00
Total Options:	Total STD OPTIONS: \$ 0.00 Total DEC OPTIONS: \$1,735.00 Total POS OPTIONS: \$3,140.00 Total Selected OPTIONS: \$4,875.00
Total Option Incentives:	\$ 0.00
SELLING PRICE:	<u>\$346,990.00</u>

Purchaser acknowledges that, upon execution of this Agreement, Purchaser shall be required to pay Option Money in the amount of \$ **0.00** for the Initial Options.

PURCHASER:

DocuSigned by:

Godwill Atem Atem

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6/23/2023

Date

Buyer:

Godwill Atem Atem

SELLER:

D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes

DocuSigned by:

Bonnie L Slaydon

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6/27/2023

Date

Bonnie L Slaydon

Officer, D.R. Horton

For Internal Purposes Only:

DocuSigned by:

kenyata T Stewart

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6/23/2023

Date

Sales Rep:

Kenyata Tashakent Stewart

Closing Disclosure Contact Information

Below is information intended to assist interested parties with the completion of the Closing Disclosure.

GENERAL INFORMATION

Buyer(s) Godwill Atem Atem
Subdivision: Oaks at Cedar Grove
Plan/Elevation Name: ROBIE
Lot Address: 8255 BLUEWATER DRIVE, FAIRBURN, GA 30213
Lot Number: 0112/
Construction Stage: 01 Foundation Layout/Trench Stage
Contract Date: 06/23/2023
Accepted Date:

REAL ESTATE BROKER INFORMATION (BUYER)

Company Name: Watkins Real Estate Associates

Agent Name: Corey Keller
Agent Email: coreykellerre@gmail.com
Agent Cell: 7708466360
Agent Work:
Agent Fax:

Agent License Number: 370349

REAL ESTATE BROKER INFORMATION (SELLER)

Company Name: D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes
Agent Name: Kenya Tashakent Stewart
Agent Email: KStewart@drhorton.com
Agent Cell:
Agent Work:

LENDER INFORMATION

Company Name: DHI MORTGAGE
Loan Officer Name: BURSON, APRIL BLAIR W,
Loan Officer Email: bburson@dhimortgage.com
Loan Officer Cell: (470) 582-3526
Loan Officer Work:

SETTLEMENT AGENT INFORMATION

Company Name: MCMICHAEL & GRAY, P.C.
Agent Name: JACOBO, KARMAN
Agent Email: kjacobo@mcmichaelandgray.com
Agent Cell:
Agent Work: (678) 872-9006
Agent Fax:

Notice of Collection and Sharing of Personal Information

We are providing you with this notice regarding the personal information we collect, how we use it, and with whom we share it. You can learn more about privacy, how we protect your personal information and your privacy choices in our Privacy Policy, available at www.drhorton.com/privacy-policy.

Below, we describe how we handle various types of personal information you may provide to us.

Identifiers

Identifiers are pieces of information directly linked to a particular individual, such as your name, address, email address, and phone number. We use and share this information to: (1) complete transactions into which you have entered, such as completing your home sale, installing equipment or fulfilling the terms of your home warranty; (2) communicate with you, or permit third parties to communicate with you, including about products and services that may be of interest to you; (3) improve our products and services; and (4) comply with applicable law. We also may be required by law to collect this information. At times, we may share identifiers with our third-party service providers, our affiliates, or other third parties to fulfill these purposes.

Legally Protected Characteristics

Depending on the nature of our interaction with you, we may be required under state or federal law to collect certain information related to legally-protected characteristics. This may include your age, sex, race, national origin, or disability. We maintain this information to confirm our compliance with the law, or otherwise to provide you with information about products and services.

Professional, Educational or Employment-Related Information

We may collect certain professional, educational or employment-related information about you, as part of our transactions with you. We only use this information for the specific purposes described when it is collected or as required by law. At times, we may share this information with our third-party service providers, our affiliates, or other third parties to fulfill these purposes.

BUYER(S):

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Godwill Atem Atem
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Buyer: Godwill Atem Atem

6/23/2023

Date

D.R. Horton Smart Home Disclosure

Congratulations on your new D.R. Horton Smart Home! Your new home is equipped with technology that includes some or all of the following Internet-connected devices: a programmable thermostat; a door lock; a light switch; a touchscreen smart home control device; home security devices such as door and window contacts and motion detectors; a video doorbell; a garage door opener; and a smart speaker (collectively, “**Smart Home Technology**”), all of which are integrated by an automation platform hosted by Alarm.com. Other Smart Home Technology features may be offered for an additional charge. See your D.R. Horton sales representative for complete details on the Smart Home Technology included in your home.

Some or all of the Smart Home Technology may be installed after closing, by a third-party installer or manufacturer (“**Provider**”). At that time, the Provider may activate certain components of the Smart Home Technology, provide training to you on how to use the Smart Home Technology, and provide information to you regarding additional services or products available for purchase.

The Alarm.com home automation-only application (the “**App**”) is included at no charge to you for 36 months following the close of escrow on your home. Thereafter, the App may be purchased directly from the Provider for a monthly fee or, if you have contracted with the Provider for security monitoring services, the App is included with such security-monitoring services.

In order to install and activate the Smart Home Technology and to provide you with training on how to use the Smart Home Technology and information regarding additional services or products available for purchase, D.R. Horton will provide your contact information to the Provider so the Provider can get in touch with you via telephone, email or U.S. mail to schedule an appointment. For the Smart Home Technology to work, you must obtain and pay for your own Internet service, and you may need to purchase compatible devices and maintain accounts with third parties for the services. The Provider will discuss these requirements with you prior to the appointment to ensure the installation and activation goes smoothly. D.R. Horton may receive compensation from the Provider if you purchase additional services or products from the Provider.

IMPORTANT INSTALLATION DEADLINE: You have 120 days from the date you close escrow on your home (the “**Deadline**”) to schedule an appointment with the Provider. If you schedule an appointment with the Provider after the Deadline, you will be required to pay the Provider’s then-current labor and equipment costs to install and activate certain components of the Smart Home Technology and to train you on how to use the Smart Home Technology.

PRIVACY DISCLOSURE: In connection with your purchase of a home from D.R. Horton, we will collect certain personal information from you. To learn more about the categories of personal information we collect, and how we may use or share that personal information, please view our Privacy Policy on our website at www.drhorton.com, as it may change from time to time.

COLLECTION OF INFORMATION BY DEVICES: The Smart Home Technology may collect information about you and your use of the device. This information is collected, used and analyzed by the third-party providers of the devices and the Alarm.com automation platform. Use of such information is governed by the terms, conditions, policies and practices of such third-party providers only. D.R. Horton recommends that you carefully review your agreements with, and other terms and conditions published by, these third-party providers, as well as additional information about the Smart Home Technology by visiting www.drhorton.com/smart-home. D.R. Horton does not collect any information from these devices about you or your use of the devices.

I acknowledge and agree that D.R. Horton does not make any representations or warranties that any or all of the Smart Home Technology is secure, will meet any of my needs or will provide any level of physical or cyber security for my home or otherwise – even if the Smart Home Technology is working as intended.

Cell Phone #: 6785164580 Work Phone #: Home Phone #:

Email Address (primary): atemgodwill17@gmail.com Email Address (secondary):

My New Home – Address /Direct Mail: 8255 BLUEWATER DRIVE, FAIRBURN, GA 30213

Community/Subdivision Name: Oaks at Cedar Grove

BUYER(S):

DocuSigned by:

Godwill Atem Atem

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6/23/2023

Buyer: Godwill Atem Atem

Date

NOTICE OF SELLER’S BUSINESS AFFILIATIONS

To: Godwill Atem Atem
[Homebuyer(s)]

PROPERTY: 8255 BLUEWATER
DRIVE, FAIRBURN, GA
30213

FROM: D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom
Homes
[Seller]

DATE: June 23, 2023

This is to give you notice that the above referenced seller has a business relationship with:

DHI MORTGAGE COMPANY, LTD.
8800 Roswell Road, Building B, Suite 150
Sandy Springs, GA 30350

DHI MORTGAGE COMPANY, LTD.
2300 Camp Creek Parkway
Suite 120
College Park, GA 30337

DHI TITLE INSURANCE COMPANY
10700 PECAN PARK BLVD.
SUITE 125
AUSTIN, TX 78750

**TRAVIS COUNTY TITLE COMPANY, DBA
DHI TITLE AGENCY/DHI TITLE OF
GEORGIA, INC.**
10700 Pecan Park Blvd. Ste #220
Austin, TX 78750

D.R. HORTON INSURANCE AGENCY, INC.
1341 Horton Circle
Arlington, TX 76011

The nature of this business relationship is that these companies are corporate affiliates, each being 100% wholly owned by, or by a subsidiary of, the same parent corporation. Because of this relationship, this referral may provide seller a financial or other benefit.

Set forth below is the estimated charge or range of charges by each company for settlement services listed. You are **NOT** required to use these companies as a condition of your purchase of the property from seller or as a condition of your application for, or settlement of, a mortgage loan on the property in connection with your purchase. THERE ARE FREQUENTLY OTHER SETTLEMENT SERVICE PROVIDERS AVAILABLE WITH SIMILAR SERVICES. YOU ARE FREE TO SHOP AROUND TO DETERMINE THAT YOU ARE RECEIVING THE BEST SERVICES AND THE BEST RATE FOR THESE SERVICES.

DHI MORTGAGE COMPANY, LTD.		TRAVIS COUNTY TITLE COMPANY AND DHI TITLE INSURANCE COMPANY*	
Service	Charge	Service	Charge or Range
Loan Origination Charge:	0% of Loan Amount plus \$1,250.00	Simultaneous Lender’s Title Insurance:	\$150.00 - \$250.00
An additional 2% of the Loan Amount may apply for certain Affordable Housing Loan Programs		Owners Title insurance:	\$1,355.00 - \$1,600.00
		Title – CPL Fee	\$50.00

Travis County Title Company charge estimates are based on an average home price of \$300,000. Title insurance rates are set by the state. Adjustments to Sales Price, Loan Amount and Lender requirements will impact the cost of your title insurance. Mortgage fees may vary depending upon whether the loan is originated or brokered by DHI Mortgage Company, Ltd. *Travis County Title Company provides title insurance services through several underwriters of title insurance policies, one of which is DHI Title Insurance Company.

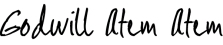
Note: If you apply with DHI Mortgage Company, Ltd., a Loan Estimate of all settlement charges will be provided to you by DHI Mortgage Company, Ltd. at or within three business days after loan application.

You may be entitled to additional builder discounts/credits paid by the seller to purchase multiple settlement services as set forth in the Builder’s Incentive and Concessions Addendum to your purchase contract.

D. R. HORTON INSURANCE AGENCY, INC.
D.R. HORTON INSURANCE AGENCY, INC. is a licensed insurance agent that offers policies of property insurance as agent for one or more insurance companies qualified to transact insurance business in the State of Georgia. You will be provided a separate proposal or quote of the terms and conditions of any policy of insurance offered by D.R. HORTON INSURANCE AGENCY, INC. in which you express an interest. For comparison purposes, the cost for a hazard insurance policy for a home valued at \$300,000 with commonly selected coverage items and deductibles would range between: \$200 and \$4,798 per annum. The specific premium depends on various factors, including but not limited to, the value of the home, the location of the home, deductibles selected, and the amount of coverage selected. The quote will set out the estimated premium and other charges, or range of charges, by D.R. HORTON INSURANCE AGENCY, INC. for its insurance products or services.

ACKNOWLEDGMENT:
I/we have read this disclosure form and understand that seller is referring me/us to purchase the above-described settlement services from **DHI MORTGAGE COMPANY, LTD., TRAVIS COUNTY TITLE COMPANY, and D.R. HORTON INSURANCE AGENCY, INC.** and may receive a financial or other benefit as the result of this referral.

DocuSigned by:



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Buyer: Godwill Atem Atem

6/23/2023
Date

Subdivision Specific ADDENDUM

STATE WATERS AND BUFFERS ADDENDUM

This State Waters and Buffers Addendum (this “Addendum”) is attached to and made a part of that Home Purchase Agreement (the “Agreement”) between **D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes**, as Seller, and **Godwill Atem Atem**, as Purchaser, regarding that parcel of land located in Fulton County, Georgia, briefly described as Lot **0112** of The Oaks at Cedar Grove, Phase I (the “Subdivision”), and referred to in the Agreement and this Addendum as the “Property” or the “Lot.” Capitalized terms defined in the Agreement shall have the same meanings when used in this Addendum. Notwithstanding any other provision of the Agreement, Seller and Purchaser agree as follows:

- 1. In the event of a conflict between the terms and provisions of this Addendum and any other terms or provisions of the Agreement, this Addendum shall control as to all matters in this Addendum.
- 2. Seller has disclosed to Purchaser and Purchaser understands and acknowledges the following (the “Disclosed Matters”) regarding the Property and the Subdivision:
 - a. Seller is not the developer of the Subdivision and is not responsible or obligated to Purchaser or any other party for any part of the developer's activities, including any buffers, setbacks, impacts or encroachments throughout the Subdivision which may affect the Property.
 - b. The Subdivision contains state waters (creek) and/or state waters buffers (such areas being designated on the Plat referenced herein as “10’ impervious surface setback”, “15’ improvement setback”, “75’ stream buffer” or “25’ stream buffer”), which encumber specific Lots as shown on the Final Plat for The Oaks at Cedar Grove Phase I, recorded in Plat Book 453, Pages 54 through 65, in the Official Public Records of Fulton County, Georgia (the “Plat”). State waters and state waters buffers are natural resources protected by federal, state, and/or local law and regulated by the U.S. Army Corps of Engineers (the “ACOE”) and/or other applicable federal, state, or local authorities having jurisdiction over the Subdivision.
 - c. Except as may be otherwise expressly granted by written approval from the applicable governmental authorities, activities on or use of the state waters or state waters buffers, wherever located in the Subdivision, may be limited or altogether prohibited.
 - d. Seller cannot assure Purchaser that the location of any state waters or state waters buffer will not be changed in the future.

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Initials

Buyer

- e. More information about the state waters or state waters buffers may be found by: (i) accessing the website of the ACOE, Savannah District, at <http://www.sas.usace.army.mil/Missions/Regulatory.aspx> or by contacting the ACOE, Savannah District, at (800) 448-2402; (ii) accessing the website of the U.S. Environmental Protection Agency (the “EPA”), at <http://water.epa.gov/type/wetlands/index.cfm> or by contacting the EPA directly at (404) 562-9232; (iii) accessing the website of the Georgia Environmental Protection Division (the “GAEPD”) at <http://epd.georgia.gov/erosion-and-sedimentation> or by contacting the GAEPD at (404) 651-8554; (iv) accessing the website of the Georgia Soil and Water Conservation Commission, Region 1 (the “GSWCC”), at <https://gaswcc.georgia.gov/> or by contacting the GSWCC at (706) 552-4474; (v) accessing the website of the Fulton County Planning, Zoning, and Permitting Department (“Fulton County”) at <https://www.fultoncountyga.gov/inside-fulton-county/fulton-county-departments/public-works/planning-zoning-and-permitting> or by contacting Fulton County at (404) 612-7400; and/or (vi) consulting the Plat.
- 3. Except as stated in this Addendum or in the Agreement, Seller, its parent, subsidiaries, and affiliates and each of their respective officers, directors, employees, agents, heirs, personal representatives, successors, and assigns (the “Seller Parties”), have not made and do not make any warranties,

representations, promises, or statements of any kind, whether written or oral, express or implied, with regard to the state waters and/or state waters buffers, the location, extent, scope, or characteristics of the state waters and/or state waters buffers, or any environmental conditions or potential environmental effects associated with any of the same.

4. THE DISCLOSED MATTERS MAY ADVERSELY AFFECT (I) THE VALUE OF THE PROPERTY, AND/OR (II) THE USE, ENJOYMENT, AND/OR OWNERSHIP OF THE PROPERTY BY PURCHASER AND/OR PURCHASER’S HEIRS, SUCCESSORS, INVITEES, LICENSEES, ASSIGNS, AND LEGAL REPRESENTATIVES (THE “PURCHASER PARTIES”).

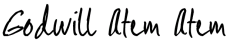
5. Purchaser acknowledges that this Addendum (i) is not intended to, and does not, constitute a full disclosure of all conditions that might affect the Property or the Subdivision, and (ii) does not relieve Purchaser from its obligations to investigate the Property and the Subdivision to satisfy itself that the Property and the Subdivision are satisfactory to Purchaser. In addition, Purchaser acknowledges that Seller has no duty to update, and will not update, this Addendum or the information contained in this Addendum (including, without limitation, any references to the website or telephone numbers set forth in Paragraph 2.f above).

6. THE PURCHASER PARTIES HEREBY RELEASE THE SELLER PARTIES FROM ANY AND ALL CLAIMS, DEMANDS, LOSSES, COSTS, INJURIES, OR DAMAGES, KNOWN OR UNKNOWN, THAT THE PURCHASER PARTIES MAY HAVE, AT ANY TIME, THAT ARE IN ANY WAY RELATED TO, CONNECTED WITH, OR ARISING OUT OF, DIRECTLY OR INDIRECTLY, THE DISCLOSED MATTERS OR THEIR EFFECTS, PRESENT OR FUTURE, ON THE HEALTH OR SAFETY OF THE PURCHASER PARTIES, THE PROPERTY OR ANY OTHER AREAS WITHIN OR AROUND THE SUBDIVISION. IT IS THE SPECIFIC INTENT OF THE PURCHASER PARTIES TO FULLY RELEASE AND DISCHARGE EACH AND ALL OF THE SELLER PARTIES FROM ANY AND ALL LIABILITY RELATED TO THE DISCLOSED MATTERS.

IN WITNESS WHEREOF, THE UNDERSIGNED HAVING READ, REVIEWED AND UNDERSTOOD THIS ADDENDUM, HAVE SIGNED THIS ADDENDUM ON THE DATE SHOWN BELOW.

PURCHASER(S):

DocuSigned by:



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6/23/2023

Buyer: Godwill Atem Atem

Date

Certificate Of Completion

Envelope Id: 3BCF423415A945A9AC078B8DAEF1F042

Status: Completed

Subject: Purchase Agreement for Property at 8255 BLUEWATER DRIVE,

Source Envelope:

Document Pages: 23

Signatures: 24

Certificate Pages: 6

Initials: 5

AutoNav: Enabled

Envelopeld Stamping: Enabled

Time Zone: (UTC-06:00) Central Time (US & Canada)

Envelope Originator:

Home Sales

1341 Horton Circle

Arlington, TX 76011

noreply-edocs@drhorton.com

IP Address: 199.36.190.2

Record Tracking

Status: Original

6/23/2023 5:15:35 PM

Holder: Home Sales

noreply-edocs@drhorton.com

Location: DocuSign

Signer Events

Godwill Atem Atem

atemgodwill17@gmail.com

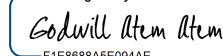
Security Level:

.Email

6/23/2023 6:49:15 PM

Signature

DocuSigned by:



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Signature Adoption: Pre-selected Style

Using IP Address: 47.32.97.82

Timestamp

Sent: 6/23/2023 5:15:39 PM

Viewed: 6/23/2023 5:21:00 PM

Signed: 6/23/2023 6:57:21 PM

Electronic Record and Signature Disclosure:

Accepted: 6/23/2023 5:21:00 PM

ID: 3359ec1a-7ba2-4bca-ac6b-df231b72f304

Corey Keller

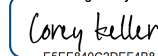
coreykeller@gmail.com

Security Level:

.Email

6/23/2023 6:22:42 PM

DocuSigned by:



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Signature Adoption: Pre-selected Style

Using IP Address: 174.195.37.248

Signed using mobile

Sent: 6/23/2023 5:15:39 PM

Viewed: 6/23/2023 5:19:04 PM

Signed: 6/23/2023 6:23:18 PM

Electronic Record and Signature Disclosure:

Accepted: 6/23/2023 5:19:04 PM

ID: 234f4bb6-4054-4f85-88da-a7f268fbaa88

Bonnie L Slaydon

GMVann@drhorton.com

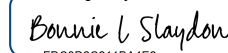
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Signed: 6/27/2023 9:04:02 AM

Electronic Record and Signature Disclosure:

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Kenyata T Stewart

KStewart@drhorton.com

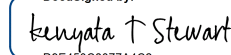
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Completed	Security Checked	6/27/2023 9:04:02 AM
Payment Events	Status	Timestamps
Electronic Record and Signature Disclosure		

CONSENT TO ELECTRONIC RECEIPT OF CONSUMER DISCLOSURES REGARDING YOUR HOME PURCHASE CONTRACT AND ELECTRONIC SIGNATURE OF YOUR HOME PURCHASE CONTRACT

D.R. Horton, America's Builder (hereinafter "we," "us" or the "Company") is required by law to provide you certain written notices and disclosures about your home purchase contract (collectively, "Disclosures"). Set forth below are the terms and conditions for providing Disclosures to you electronically. In addition, we provide you with the option of electronically executing, through the DocuSign, Inc. ("DocuSign") electronic signing system ("DocuSign System"), all documents comprising your home purchase contract including, but not limited to, the home purchase contract and related contract addenda, Disclosures, amendments and change orders (hereinafter referred to as "Your Contract"). The terms and conditions regarding such electronic signature are also set forth below.

Please read carefully and thoroughly the information below. If you can access this information electronically, to your satisfaction, and agree to receive Disclosures electronically and to execute Your Contract with us electronically through the DocuSign System, in accordance with these terms and conditions, please confirm your agreement by clicking the "I agree" button at the bottom of this document. If you do not agree, you will receive Disclosures in paper format, and you will be required to sign paper copies of Your Contract in ink. If Your Contract and Disclosures are provided to you in paper format, there will be no charge or expense to you. The terms and conditions set forth below and your agreement to these terms and conditions will apply to all transactions related to Your Contract conducted between you and the Company through the DocuSign System. **You are not required to receive or execute documents comprising Your Contract electronically.**

Right to Obtain Paper Copies

At any time, you may request from us a paper copy of Your Contract or Disclosures that we previously made available to you electronically. You will have the ability to download and print documents that we send to you through the DocuSign System during, and immediately after, a signing session and, if you elect to create a DocuSign signer account, you may access such documents for a limited period of time (usually 30 days) after such documents are first sent to you. After such time, if you wish for us to send you a paper copy of any such document, you may request a paper copy from us by following the procedure described below under "Procedure to Request Paper Copies of Your Contract and Disclosures Regarding Your Contract from the Company." We will not charge you any fees for one paper copy of any such requested document.

Right to Withdraw Your Consent

If you decide to receive Disclosures from us electronically and to execute Your Contract with us electronically through the DocuSign System, you may, at any time thereafter, change your mind and tell us that you now wish to receive Disclosures only in paper format and to execute Your Contract with an ink signature. How you must inform us of your decision to receive future Disclosures in paper format, execute Your Contract with an ink signature and withdraw your consent: (i) to receive Disclosures and (ii) to execute Your Contract electronically is described

below under "Procedure to Withdraw Your Consent to Receive Future Disclosures Regarding Your Contract in Electronic Format and Electronically Execute Your Contract."

Consequences of Changing Your Mind

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All Disclosures Regarding Your Contract Will Be Sent to You Electronically

Unless you tell us otherwise in accordance with the procedures described herein, all Disclosures and Your Contract will be provided to you electronically through the DocuSign System. To reduce the chance of you inadvertently not receiving a Disclosure or a document comprising Your Contract, we prefer to provide all required Disclosures and Your Contract documents to you by the same method (electronically or in paper format) and, if electronically, to one email address. Thus, you can receive all Disclosures and Your Contract electronically or in paper format via mail. If you do not agree to electronic receipt, please let us know as described below under "Procedure to Withdraw Your Consent to Receive Future Disclosures Regarding Your Contract in Electronic Format and Electronically Execute Your Contract." Please also see the paragraph immediately above that describes the consequences of electing not to receive Disclosures and Your Contract documents electronically.

Procedure to Contact the Company

You may send an email message, as described below, to support-edocs@drhorton.com: (i) to let us know of any changes as to how we may contact you electronically, (ii) to request paper copies of certain information from us, and (iii) to withdraw your prior consent to receive Disclosures and execute Your Contract electronically.

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In addition, you must notify DocuSign to arrange for your new email address to be reflected in your DocuSign account by following the process for changing an email address in the DocuSign System.

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To request delivery from us of a paper copy of any Disclosure previously provided to you electronically or any document comprising Your Contract that you executed electronically, you must send an email to support-edocs@drhorton.com and in the body of such request you must state your email address, full name, US Postal address, telephone number and property address for the home you are purchasing or have purchased.

Procedure to Withdraw Your Consent to Receive Future Disclosures Regarding Your Contract in Electronic Format and Electronically Execute Your Contract

To inform us that you no longer wish to receive future Disclosures in electronic format or that you have changed your mind regarding the use of the DocuSign System to execute Your Contract electronically, you must either:

- i. decline to sign Your Contract within your DocuSign session, and on the subsequent page, select the check-box indicating you wish to withdraw your consent, or
- ii. send an email to support-edocs@drhorton.com and, in the body of such request, state your email address, full name, U.S. Postal address, telephone number and property address for the home you are purchasing or have purchased. We do not need any other information from you to withdraw your consent.

As a result of your consent withdrawal, you will no longer be able to use the DocuSign System to receive Disclosures electronically or to sign Your Contract electronically. Withdrawal of your consent will not, however, affect the legal validity and enforceability of any Disclosure that you previously received electronically or of any documents that comprise Your Contract that you previously executed electronically. Any withdrawal of your consent will be effective immediately. We will not charge you a fee for withdrawal of your consent.

Required* Hardware and Software

Operating Systems:	Windows® XP, Windows Vista®; Windows 7; Mac OS® X
Browsers:	Final release versions of Internet Explorer® 7.0 or above (Windows only); Mozilla Firefox 3.0 or above (Windows and Mac); Safari™ 3.0 or above (Mac only); Google Chrome 5.0 or above.
Mobile Signing:	Apple iOS 4.0 or above; Android 2.2 or above.
PDF Reader:	Acrobat® or similar software may be required to view and print PDF files
Screen Resolution:	1024 x 768 minimum
Enabled Security Settings:	Allow per session cookies

*These minimum requirements are subject to change. If these requirements change, you will be asked to re-accept the disclosure. Pre-release (e.g. beta) versions of operating systems and browsers are not supported.

Acknowledging Your Access and Consent to Receive Materials Regarding Your Contract Electronically and Execute Your Contract Electronically

To confirm to us that you can access this information electronically, which will be similar to other Disclosures and documents comprising Your Contract that we will provide to you, please verify, by clicking the "I agree" button below, that: (i) you were able to read this electronic disclosure and that you also were able to print this page on paper or electronically save it for your future reference and access or (ii) that you were able to email this disclosure to an address where you will be able to print it on paper or save it for your future reference and access. Further, if you consent to receiving Disclosures in electronic format and to execute Your Contract through the DocuSign System on the terms and conditions described above, please let us know by clicking the "I agree" button below.

By checking the "I agree" box, I confirm that:

- **I can access and read this electronic CONSENT TO ELECTRONIC RECEIPT OF CONSUMER DISCLOSURES REGARDING YOUR HOME PURCHASE CONTRACT AND ELECTRONIC SIGNATURE OF YOUR HOME PURCHASE CONTRACT; and**
- **I can print on paper the disclosure or save or send the disclosure to a place where I can print it, for future reference and access; and**
- **Until or unless I notify the Company as described above, I consent to receive and to execute through electronic means, all Disclosures and all Your Contract documents.**

THESE DOCUMENTS HAVE BEEN AMENDED AND RESTATED.

ADDENDUM 4

CO-BROKER ADDENDUM

Seller: D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes

Purchaser(s): Godwill Atem Atem

Contract Date: 06/23/2023

Property: 8255 BLUEWATER DRIVE, FAIRBURN, GA 30213

Lot 0112, Oaks at Cedar Grove Subdivision

Real Estate Agency: Watkins Real Estate Associates

Real Estate Agent: Corey Keller

Sales Agent License No.: 370349

Real Estate Broker: Sherry Puckett

Agency Address: 169 Decatur Road, McDonough, Georgia 30253, US

Broker License No.: 240400

This Co-Broker Addendum ("Addendum") is being provided pursuant to the Home Purchase Agreement ("Contract") by and between Seller and Purchaser, for the purchase and sale of the above-referenced Property. Capitalized terms not otherwise defined herein shall have the same means as ascribed to them in the Contract. If any term or condition of this Addendum conflicts with any term or condition of the Contract, the terms and conditions of this Addendum shall prevail.

Commission. Purchaser hereby identifies and designates the above named Sales Agent, Real Estate Broker and Real Estate Agency, collectively, as “Co-Broker,” as provided in Section 10 of the Agreement. Subject to the terms and provisions of the Agreement and this Addendum, and provided that Closing actually occurs, Co-Broker will receive a real estate sales commission at Closing determined as (a) 3.00% multiplied by (b) the “Sale Price of Property” shown on the Closing Disclosure (or “Contract sales price” shown on Line 401 of HUD-1 Settlement Statement) at Closing (the “Base Commission”). For the purposes of this Addendum, the term “Commission” is intended to include the Base Commission and all other commissions, incentives, and bonuses, if any, to be received by Co-Broker in connection with the purchase and sale of the Property pursuant to the Agreement. No commission of any kind shall be earned or due unless and until Closing occurs. The Commission shall be subject to limitations, if any, on total broker commission imposed by Purchaser’s lender. The Commission shall be paid at Closing and must be shown on the closing disclosure or settlement statement.

1. **Bonus Commission.** The subsection checked below shall apply:
- ☒ No bonus commission shall be due or paid.

OR

☐ If Closing occurs on or before , then, at Closing, the Co-Broker shall be paid an additional, bonus commission in the amount specified in the sub-subsection checked below:

☒ \$0.00

OR

☐ % multiplied by (b) the “Sale Price of Property” shown on the Closing Disclosure (or “Contract sales price” shown on Line 401 of HUD-1 Settlement Statement) at Closing.
2. **Rebate Certification.** With regard to the Commission, Co-Broker hereby acknowledges and certifies that it (*check applicable box*):
- ☒ **WILL NOT** rebate* to Purchaser part or all of the Commission.

☐ Co-Broker acknowledges and agrees that **no** rebate by Co-Broker, the above-named Real Estate Agency, or any other party of any portion of the Commission will be made directly to, or indirectly on behalf of, Purchaser or any other interested and/or related party, or used to pay Purchaser costs associated with purchase and sale of the above-referenced Property.

☐ **WILL** rebate* to Purchaser part or all of the Commission.

☐ Co-Broker acknowledges and agrees to execute a "Real Estate Commission Rebate Addendum" to the Contract to disclose the terms of such rebate in order to create transparency with regard to how such rebate applies to the purchase and sale of the above-referenced Property.

** The term “rebate” is intended to include any incentive related to the purchase and sale of the above-referenced Property, including but not limited to: a cash rebate, credit rebate of closing costs, buy-out of a lease or related borrower financial obligation, purchase of appliances or related merchandise, prizes and/or trips. Rebates may not be used to pay for options or any other portion of the Purchase Price.*

3. Co-Broker recognizes that Seller is relying on the certification set forth in Section 3 above as verification of whether or not any rebate of any portion of the Commission is to take place. A rebate occurring outside of the Closing does not preclude the Co-Broker from acknowledging that such a rebate will occur.
4. In the event that a change of circumstance arises where Co-Broker decides at a later date to rebate any portion of the Commission to Purchaser, Co-Broker agrees to execute a “Real Estate Commission Rebate Addendum” to be added by amendment to the Contract to disclose the terms of such rebate in order to create transparency with regard to how such rebate applies to the purchase and sale of the above-referenced Property and to deliver the Real Estate Commission Rebate Addendum (executed by Co-Broker and Purchaser) to Seller.

PURCHASER:

DocuSigned by:
Godwill Atem Atem
541E47DC2456455...

6/26/2023

Buyer: Godwill Atem Atem

Date

For Internal Purposes Only:

SELLER SALES REP:

DocuSigned by:
kenyata ↑ Stewart
FE88D09582D5404...

6/26/2023

Sales Rep: Kenyata Tashakent Stewart

Date

CO-BROKER:

DocuSigned by:
Corey Keller
02AD2B7361BD407...

6/27/2023

Broker Agent: Corey Keller

Date

SELLER:

D.R. Horton, Inc., a Delaware corporation, d/b/a
Freedom Homes

DocuSigned by:
Bonnie L Slaydon
5DDD331F35174D8...

6/27/2023

Bonnie L Slaydon

Date

Officer, D.R. Horton

AMENDMENT TO HOME PURCHASE AGREEMENT

This Amendment is made as of 06/26/2023, by and between Godwill Atem Atem (collectively, “Purchaser”) and D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes (“Seller”). Purchaser and Seller state and acknowledge as follows:

A. The parties previously entered into a Home Purchase Agreement regarding Lot 0112 of Oaks at Cedar Grove subdivision in FULTON County, Georgia. The Home Purchase Agreement:

- ☐ has been previously amended. The Home Purchase Agreement, as previously amended by all written amendments executed by both Purchaser and Seller, is hereinafter referred to as the “Agreement.”
- ☒ has not been previously amended, and is hereinafter referred to as the “Agreement.”

B. The parties now desire to amend the Agreement as provided below.

THEREFORE, in consideration of the reciprocal covenants stated herein, Purchaser and Seller agree as follows:

1. All capitalized terms defined in the Agreement shall have the same meaning when used in this Amendment.

1. Addendum 4 is revised and attached.
2. Subdivision-specific addenda in paragraph 25 of the purchase agreement should have been marked.

2. Except as amended herein, all terms and provisions of the Agreement remain unmodified. As amended herein, the Agreement remains in full force and effect.

IN WITNESS WHEREOF, Purchaser and Seller have executed this Amendment as of the date first stated above.

PURCHASER:

DocuSigned by:

Godwill Atem Atem

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Buyer: Godwill Atem Atem

6/26/2023

Date

SELLER:

D.R. Horton, Inc., a Delaware corporation, d/b/a Freedom Homes

DocuSigned by:

Bonnie L Slaydon

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Bonnie L Slaydon

6/27/2023

Date

Officer, D.R. Horton

For Internal Purposes Only:
Seller’s Sales Representative:

DocuSigned by:

Kenyata T Stewart

FE88D09582D5404...

Sales Rep: Kenyata Tashakent Stewart

6/26/2023

Date

Certificate Of Completion

Envelope Id: C71B134FD219477C9911A6FC259411C1

Status: Completed

Subject: Purchase Agreement for Property at 8255 BLUEWATER DRIVE,

Source Envelope:

Document Pages: 4

Signatures: 7

Envelope Originator:

Certificate Pages: 6

Initials: 0

Home Sales

AutoNav: Enabled

1341 Horton Circle

Envelopeld Stamping: Enabled

Arlington, TX 76011

Time Zone: (UTC-06:00) Central Time (US & Canada)

noreply-edocs@drhorton.com

IP Address: 199.36.190.2

Record Tracking

Status: Original

Holder: Home Sales

Location: DocuSign

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noreply-edocs@drhorton.com

Signer Events

Godwill Atem Atem

atemgodwill17@gmail.com

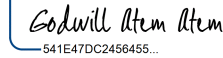
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Corey Keller

coreykeller@gmail.com

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.Email

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Bonnie L Slaydon

GMVann@drhorton.com

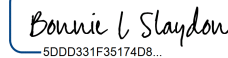
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Kenyata T Stewart

KStewart@drhorton.com

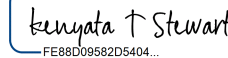
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Signed: 6/26/2023 10:44:30 PM

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Using IP Address: 104.129.207.109

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Agent Delivery Events	Status	Timestamp
Intermediary Delivery Events	Status	Timestamp
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Carbon Copy Events	Status	Timestamp
Witness Events	Signature	Timestamp
Notary Events	Signature	Timestamp
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Payment Events	Status	Timestamps
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Please read carefully and thoroughly the information below. If you can access this information electronically, to your satisfaction, and agree to receive Disclosures electronically and to execute Your Contract with us electronically through the DocuSign System, in accordance with these terms and conditions, please confirm your agreement by clicking the "I agree" button at the bottom of this document. If you do not agree, you will receive Disclosures in paper format, and you will be required to sign paper copies of Your Contract in ink. If Your Contract and Disclosures are provided to you in paper format, there will be no charge or expense to you. The terms and conditions set forth below and your agreement to these terms and conditions will apply to all transactions related to Your Contract conducted between you and the Company through the DocuSign System. **You are not required to receive or execute documents comprising Your Contract electronically.**

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- i. decline to sign Your Contract within your DocuSign session, and on the subsequent page, select the check-box indicating you wish to withdraw your consent, or
- ii. send an email to support-edocs@drhorton.com and, in the body of such request, state your email address, full name, U.S. Postal address, telephone number and property address for the home you are purchasing or have purchased. We do not need any other information from you to withdraw your consent.

As a result of your consent withdrawal, you will no longer be able to use the DocuSign System to receive Disclosures electronically or to sign Your Contract electronically. Withdrawal of your consent will not, however, affect the legal validity and enforceability of any Disclosure that you previously received electronically or of any documents that comprise Your Contract that you previously executed electronically. Any withdrawal of your consent will be effective immediately. We will not charge you a fee for withdrawal of your consent.

Required* Hardware and Software

Operating Systems:	Windows® XP, Windows Vista®; Windows 7; Mac OS® X
Browsers:	Final release versions of Internet Explorer® 7.0 or above (Windows only); Mozilla Firefox 3.0 or above (Windows and Mac); Safari™ 3.0 or above (Mac only); Google Chrome 5.0 or above.
Mobile Signing:	Apple iOS 4.0 or above; Android 2.2 or above.
PDF Reader:	Acrobat® or similar software may be required to view and print PDF files
Screen Resolution:	1024 x 768 minimum
Enabled Security Settings:	Allow per session cookies

*These minimum requirements are subject to change. If these requirements change, you will be asked to re-accept the disclosure. Pre-release (e.g. beta) versions of operating systems and browsers are not supported.

Acknowledging Your Access and Consent to Receive Materials Regarding Your Contract Electronically and Execute Your Contract Electronically

To confirm to us that you can access this information electronically, which will be similar to other Disclosures and documents comprising Your Contract that we will provide to you, please verify, by clicking the "I agree" button below, that: (i) you were able to read this electronic disclosure and that you also were able to print this page on paper or electronically save it for your future reference and access or (ii) that you were able to email this disclosure to an address where you will be able to print it on paper or save it for your future reference and access. Further, if you consent to receiving Disclosures in electronic format and to execute Your Contract through the DocuSign System on the terms and conditions described above, please let us know by clicking the "I agree" button below.

By checking the "I agree" box, I confirm that:

- **I can access and read this electronic CONSENT TO ELECTRONIC RECEIPT OF CONSUMER DISCLOSURES REGARDING YOUR HOME PURCHASE CONTRACT AND ELECTRONIC SIGNATURE OF YOUR HOME PURCHASE CONTRACT; and**
- **I can print on paper the disclosure or save or send the disclosure to a place where I can print it, for future reference and access; and**
- **Until or unless I notify the Company as described above, I consent to receive and to execute through electronic means, all Disclosures and all Your Contract documents.**